

Template for Justification and Approval for Other Than Full and Open Competition

Completion Instructions: The Department of Health and Human Services (HHS) has established a standard template for the preparation of a J&A for Other Than Full and Open Competition. If this is an 8(a) set-aside, please note this form is not required unless the acquisition is valued (including all options) at greater than \$22 million. This template is NOT applicable for actions using simplified acquisition procedures (FAR Subpart 13.5), Federal Supply Schedule orders (FAR 8.4), or task or delivery orders subject to fair opportunity (FAR 16.505).

Tailor all aspects of this template to the individual acquisition. Consult FAR Subpart 6.3 for guidance.

Delete the blue italic portions of this document prior to signature. Do not include these instructions in the final document or contract file.

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION**

Acquisition Title:	Steris
Agency:	IHS
Acquisition Year:	2025
Author:	Delbert Tsosie

2. Description of Action:

Nature:	☒ New Requirement	☐ Follow-on Requirement	
	☐ Modification to Existing Purchase Order/Contract Number:		
Pricing:	☒ Firm-Fixed Price	☐ Time & Materials	☐ Cost
	☐ Other:		
Funds:	☐ OMA	☐ Other Funds:	

Name of Proposed Contractor(s):	Steris Corporation
Street Address:	5960 Heisley Road
City, State, Zip:	Mentor OH, 44060

3. Description of Services or Supplies:

Basis for Approval (FAR 6.303-1(d)):	☒ Individual Basis	☐ Class Basis
--------------------------------------	--	--------------------------------------

The total estimated value of the proposed action, including all options is \$	172,074.48
---	------------

As applicable, briefly describe the services or supplies required to meet the agency's needs, including make & model number where appropriate. Include quantities of supplies or period of performance for services. Provide information for any options included. If the action is a modification to an existing contract, distinguish clearly between the work covered by the basic order and the work to be obtained by the proposed modification.

Maintenance of HHCC hospital sterilization equipment is a critical service to ensure the proper functioning of medical devices and to maintain a sterile environment, which is essential for patient safety and infection control.
20 IN. CENT VAC SD 480V CAB STERILIZER - 4
20 IN. CENT VAC SD 480V LIQ CYCLE STERILIZER-4
CAVIWAVE ULTRSNC CONSOL L2RWF 15GAL 208V/1PH/132HZ-2
AMSCO 3052 460-480V, 60HZ, DD, ELECTRIC-4

WAR CAB PRE GLASS DUAL 24IN 120V MOBILE EDL EDR-2
WAR CAB PRE GLASS DUAL 24IN 120V MOBILE EDL EDR-2

4. Authority and Rationale: Identify the statutory authority, FAR title and FAR citation permitting other than full and open competition. It may be one of the following most commonly used citations by the operating divisions of the Department of Health and Human Services (HHS), but other exceptions may apply per [FAR Subpart 6.3](#).

Actions other than simplified acquisition procedures (select only one and provide an explanation):

- ☒ [FAR 6.302-1](#): Only one responsible source and no other supplies or services will satisfy agency requirements, 41 U.S.C. 3304(a)(1)

Explain why the intended contractor is the only responsible source who can provide the required supplies or services. Discuss the unique capabilities, expertise, etc. that support the lack of competition/why no other type of supplies or services will satisfy agency requirements. Explain factors/unique qualifications such as proprietary data or exclusive licensing rights, if applicable. If brand name, explain why an adequate purchase description or other information suitable to solicit by full and open competition has not been developed or are not available. If in connection with a follow-on contract for continued development or production of highly specialized equipment, detail the substantial duplication of cost or unacceptable delays.

Steris Corporation is the sole source sales and service provider of the Steris Sterilizer and parts. This includes all software, hardware, training and service components. Steris Corporation products and services are considered proprietary and can only be obtained through and serviced/maintained by Steris sales and service trained representatives. Sole Source Letter provided by incumbent contractor. Steris Corporation provided a sole source letter stating they are the sole factory-authorized supplier of parts and services for their equipment.

- ☐ [FAR 6.302-2](#): Unusual and compelling urgency, 41 U.S.C. 3304(a)(2)

If unusual and compelling urgency is the basis for the justification, explain the chronological events leading up to the requirement and explain why time constraints cannot permit even a limited competition. Establish that the action will cover only the minimum quantity or period of performance necessary; in most cases options are unacceptable when citing urgency. Describe impact of required delivery/performance date. Describe the detrimental effects/serious injury to the mission of the requiring activity or to the government, financial or otherwise, that will result if this justification is not approved and the product or service cannot be provided by the intended sole source contractor. Failure to plan for expiring funds is not a valid reason for citing this exception.

- ☐ [FAR 6.302-5](#): Authorized or Required by Statute, 41 U.S.C. 3304(a)(5)

Provide a citation to the statutory authorization and a brief description of its content, or identify the specified source or other agency.

- ☐ Other (See [FAR Subpart 6.3](#) for additional authority):

Provide a citation to the applicable section of FAR 6.3 and a full explanation to justify use of the exception.

5. Bridge Contracts:

For contract extensions or bridge contracts when a competitive follow-on is in the process of being developed, summarize history of current contract and explain the reasons for any delays in the acquisition. Include discussion of the milestones for the follow-on action; the milestones should be as efficient as possible. Discuss why it would be neither cost effective nor realistic to expect another contractor to perform during the brief interim period; include issues such as start-up costs, phase-in, transfer of GFP, recruitment and staffing, etc. If the action is because of a protest, provide a brief discussion of the protest including the date the protest was filed and the basis of the protest. Explain that the action will provide the minimum quantity or performance period.

N/A

6. Actions to Increase Competition:

Describe efforts made to compete the action, including whether a notice was or will be publicized as required by FAR Subpart 5.2 or which exception under FAR 5.202 applies. If a notice was publicized, discuss the number of written responses to the synopsis and the results of the assessment of the written responses. List sources, if any, that expressed, in writing, an interest in the acquisition. Provide rationale if interested sources were rejected. If applicable, state that no other sources have expressed interest, but all offers received shall be considered. Describe what actions will be taken to increase competition before subsequent acquisition of the supplies or services is required. You may state that an action is a one-time requirement, but if a similar requirement arises, every effort will be made to compete it to the maximum extent possible. If action is sole source because of proprietary data or licensing rights and there will be a continuing need for the requirement, there must be evidence that advanced planning has been initiated to overcome the barriers to competition, or there should be documentation to support an analysis that replacement costs/licensing purchase costs outweigh the benefits of competition. If the action is a contract extension or bridge, explain actions to compete the follow-on. If action is an urgent new requirement and a competitive follow-on is anticipated, explain that efforts are underway to facilitate a full and open competition.

Not Applicable. See section 4 above.

7. Market Research:

Describe the extent of the market research conducted to identify all qualified sources and the results thereof. "Market Research" is defined as those attempts you made to ascertain whether other qualified sources exist, and can include contact with knowledgeable experts regarding similar or duplicate requirements, contact with industry, results of a sources sought synopsis, or draft solicitations. Research of the marketplace may consist of written, electronic (i.e. email) telephonic, or world wide web inquiries. Lack of advanced planning is not an acceptable reason for the lack of market research, but true urgency may necessitate abbreviated market research that is limited to readily available historical and commercial information. If action is a contract extension or bridge contract, describe the market research efforts underway or completed for the follow-on.

Market research shows only one source is capable of providing this service.

8. Procurement History:

Purchase order or contract number:

75H71219P00140

Was action competed?

☐ Yes

☒ No

If action was not competed, state the cited authority, summarize rationale, and describe the actions that were supposed to be taken to increase competition and the results thereof:

FAR 6.302-1: Only one responsible source and no other supplies or services will satisfy agency requirements, 41 U.S.C. 3304(a)(1). STERIS is the sole factory-authorized supplier of parts and service for the equipment that they manufacture including products under the brand names of AMSCO, Finn Aqua, HAMO, Black Diamond Video, and Medisafe. All replacement parts manufactured or marketed by STERIS Corporation are compliant with original equipment manufacturer (OEM) specifications. These parts are sold and shipped directly to the end user of the products. STERIS does not utilize a distributor model.

9. Additional Information to support the justification

If applicable, explain why technical packages or specifications to facilitate competition were not developed or available; describe actions taken to remedy the situation.

Proprietary Technology:

The sterilizing units requires access to proprietary technology source code, algorithms, and technical data owned exclusively by Steris Inc. No other contractor has access to this proprietary information, which is essential for Hopi Health Care Center. Switching to a new contractor would require significant investment in reverse engineering, system analysis, and testing, resulting in substantial duplication of costs. Awarding the contractor to Steris Inc. ensures cost efficiency and avoids unnecessary expenditures.

10. Technical / Requirements Certification: *By my signature below*, I certify that the supporting data under my review which is included in this J&A is accurate and complete.

Program Manager	
Name:	Delbert Tsosie
Position Title:	Biomed equipment specialist
Email address:	delbert.tsosie@ihs.gov
Phone:	928.7376019
Program Manager Supervisor (or one level above Program Manager)	
Name:	Amanda Hicks
Position Title:	Chief Executive Officer
Email address:	amanda.hicks@ihs.gov
Signature	Amanda L. Hicks -S  Digitally signed by Amanda L. Hicks -S Date: 2025.02.21 13:54:51 -07'00'
Date:	

11. Fair and Reasonable Price Determination: As Contracting Officer, by my signature below, I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

Provide the basis for this determination, e.g., describe techniques to be used to determine fair and reasonable price (FAR Subpart 15.402), such as price analysis, cost analysis, cost realism. Per FAR Subpart 15.403-4(a)(1), the threshold for obtaining cost or pricing data is \$750,000.

The incumbent contractor provided a quote for a base plus four option years in the total amount of \$172,074.48. Price reasonableness of the quote is determined fair and reasonable in comparison to the IGCE amount of \$172,074.49

12. Contracting Officer's Approval (Required for proposed contract not to exceed \$700,000 (value calculated including all options)): I hereby certify that this justification is accurate and complete to the best of my knowledge. I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Name:	Joshua Pearlman	Phone:	602-364-5022
Signature:	JOSHUA L. PEARLMAN -S  Digitally signed by JOSHUA L. PEARLMAN -S Date: 2025.03.04 08:03:55 -07'00'	Date:	Mar 4, 2025

13. Legal Review:

All J&As equal to or greater than \$68 million must have a legal review from the General Law Division of the Office of the General Counsel prior to sending it to the Department.

--

14. OPDIV Competition Advocate Approval (Required for proposed contract over \$700,000 but not exceeding \$13.5 million value calculated including all options):

I have reviewed this justification and find that it adequately supports other than full and open competition.

Name:		Phone:	
-------	--	--------	--

Signature:		Date:	
------------	--	-------	--

15. Office of Small and Disadvantaged Business Utilization

I have reviewed this justification and find that it adequately supports other than full and open competition.

Name:		Phone:	
Signature:		Date:	

16. OPDIV HCA Approval (Required for proposed contract over \$13.5 million but not exceeding \$68 million value calculated including all options):

Name:		Phone:	
Signature:		Date:	

(The below approval paragraph is required if the cumulative contract value, including all options, equals or exceeds \$68 million.)

HHS Senior Procurement Executive (SPE) Approval

Based on the foregoing justification, I hereby approve the procurement of (state supplies/services being procured) on an other than full and open competition basis pursuant to the authority of (state the full statutory authority and FAR cite and title, consistent with paragraph 4, e.g. 41 U.S.C. 3304), as implemented by [FAR 6.301](#)), subject to the availability of funds, and provided that the services herein described have otherwise been authorized for acquisition.

Name:		Phone:	
Signature:		Date:	